

71. Denied. This request is overbroad. Defendant's objection is sustained.

72. Denied. This request is overbroad. Defendant's objection is sustained.

89. Denied. This request is overbroad. Defendant's objection is sustained.

90. Denied. This request is overbroad and irrelevant. Defendant's objection is sustained.

91. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified documents that are responsive to this request and has agreed to produce them. . To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

104. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified documents that are responsive to this request and has agreed to produce them. . To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

118. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified documents that are responsive to this request and has agreed to produce them. . To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order.

119. Denied. This request is overbroad. Defendant's objection is sustained. Defendant has identified documents that are responsive to this request and has agreed to produce them. . To the extent Defendant has not produced responsive documents, it is ordered to do so in compliance with this order

133. Denied. This request is overbroad. Defendant's objection is sustained.

134. Denied. This request is overbroad. Defendant's objection is sustained.

137. Denied. This request is overbroad. Defendant's objection is sustained.

138. Denied. This request is overbroad. Defendant's objection is sustained.

B. Further production: Defendant is ordered to produce documents that it has represented it would produce, but has not yet produced, no later than ten (10) days from service of this order.

C. Plaintiffs' Request for Sanctions is denied. Each party to pay their own attorney's fees and costs for prosecuting and/or defending against this motion.

D. Defendant is ordered to prepare and e-file a conforming order no later than ten (10) days from the date of this hearing, adopting and attaching a copy of this ruling.

**Law & Motion
Add On**

19. 9:00 AM CASE NUMBER: C24-02496
CASE NAME: FEDERICO BOJORQUEZ VS. HERMINIA MARTINEZ
HEARING ON DEMURRER TO: 2ND AMENDED COMPLAINT
FILED BY:
TENTATIVE RULING:

Defendant Herminia Martinez's demurrer to the second amended complaint is **sustained with leave to amend** as to all causes of action. Plaintiff shall file and serve a third amended complaint within 10 days from notice of entry of this order.

Plaintiff Federico Bojorquez originally filed this complaint on September 17, 2024. He has amended his complaint several times in response to demurrers by Defendant Herminia Martinez. In the SAC Plaintiff is suing for (1) fraud, (2) declaratory relief and (3) quiet title.

Plaintiff's mother purchased 45 Merrimac Place and in 1991 added Plaintiff and his two brothers to title on the property. (SAC ¶12.) Plaintiff's sister, the Defendant, was not added to title. (SAC ¶¶12-3.)

In September and October 2020, Estela Cuadras and Federico Bojorquez signed a quitclaim deed for the property, giving it to Defendant. The deed was recorded on November 24, 2021. (SAC ¶15 and ex. 2.) On October 20, 2020, Defendant persuaded Plaintiff to sign the quitclaim deed by misrepresenting to Plaintiff that the document was only for refinancing to his benefit. (SAC ¶16.) Plaintiff also alleges that Defendant represented that the quitclaim was to obtain mutually beneficial financing for himself and other owners. (SAC ¶12.) Plaintiff is employed as an agricultural laborer and cannot read or write in Spanish or English. ¶Plaintiff relied on the Defendant to truthfully represent the purpose of the quitclaim deed. (SAC ¶11.)

Plaintiff first discovered the fraud on March 5, 2024 when Defendant first asserted that Plaintiff did not have title, right or other claim to the property. (SAC¶ 7.) Plaintiff filed a complaint with the Contra Costa District Attorney's office on March 5, 2024. (SAC ¶¶8-9 and ex. 3.)

In the Fraud claim, Plaintiff seeks to cancel the deed and restore Plaintiff to title. (SAC ¶13 and SAC p.4:10-13.) In the declaratory relief claim, Plaintiff seeks a declaration that he did not understand or comprehend or intent to grant unconditional title to his trusted sister, the Defendant, but relied on the deed to enable financing to his benefit and it should be used for that purpose only. (SAC p.4:14-22.) In the quite title claim, Plaintiff seeks to quiet title based upon the fraud alleged above and asks that title be restore to Plaintiff and his mother Estela Bojorquez. (SAC 4:23-5:8.) In the prayer for relief, Plaintiff seeks a judicial declaration, quiet title, damages for the time Plaintiff was wrongfully ejected from the property and attorney fees and costs.

As to Leonardo Bojorquez, it is alleged that he notarized the quitclaim deed. (SAC¶ 5.) Plaintiff alleges that Leonardo notarized the quitclaim deed, knowing that Plaintiff did not understand it and

Plaintiff seeks to name Leonardo as a co-conspirator. (SAC ¶14.) Plaintiff seeks damages against Leonardo in the fraud cause of action. Similar allegations were included in the original complaint, but Leonardo was dropped as a Defendant in the FAC.

Defendant demurs to the causes of action based on the failure to allege facts to state a valid cause of action under Code of Civil Procedure section 430.10(e) and also on uncertainty under section 430.10(f). As to the quiet title claim, Defendant also demurs based upon a misjoinder of parties under section 430.10(d).

Fraud

Elements of Fraud

Previously, the Court considered the allegations in the FAC and explained that Plaintiff alleged that Defendant said that she needed to be on title to qualify for refinancing (FAC 7), but the Court also noted that fraud allegations seemed incomplete. “Did Martinez agree to quitclaim the property back to Plaintiff at some future date or just hold the house on his behalf? Or some other promise regarding the property?” The Court then sustained the demurrer with leave to amend on this ground.

The SAC includes similar allegations to the FAC regarding the alleged fraud. Upon further consideration, however, the Court finds that there is a fraud claim based upon the alleged misrepresentation by Defendant along with a consideration of the reasonable inferences from that statement. Plaintiff alleges that Defendant told Plaintiff she needed to be on title to obtain financing for Plaintiff’s benefit. There is a reasonable inference that the title transfer was for financing and not for another purpose, such as giving Defendant the title free and clear. Further, there is inference is that Plaintiff would be permitted to use the property in the same manner as he had been before he signed the quitclaim deed.

The additional requirements for alleging a fraud claim with particularity are also met: Defendant made the statement to Plaintiff around the time Plaintiff signed the quitclaim deed on October 20, 2020. Plaintiff signed the quitclaim deed in reliance on Defendant’s statement that it was to benefit Plaintiff.

Statute of Limitations

The Court must still consider whether the statute of limitations bars the fraud claim. The statute of limitations for fraud is three years. (Code of Civil Procedure section 338(d).) A cause of action under section 338(d) “does not accrue ‘until the discovery, by the aggrieved party, of the facts constituting the fraud or mistake.’ [Citation.]” (*Ankoanda v. Walker-Smith* (1996) 44 Cal.App.4th 610, 615.) “The discovery rule delays accrual until the plaintiff has, or should have had, notice of facts sufficient to put a prudent person on inquiry regarding his or her claim. [Citation.] In a cause of action for fraud, the statute of limitations begins to run ‘ “after one has knowledge of facts sufficient to make a reasonably prudent person suspicious of fraud, thus putting him on inquiry” [Citation.]’ [Citation.] [P]laintiffs are required to conduct a reasonable investigation after becoming aware of an injury, and are charged with knowledge of the information that would have been revealed by such an

investigation.’ [Citation.]” (*Lauckhart v. El Macero Homeowners Assn.* (2023) 92 Cal.App.5th 889, 900-901.)

“ ‘In order to rely on the discovery rule for delayed accrual of a cause of action, ‘[a] plaintiff whose complaint shows on its face that his claim would be barred without the benefit of the discovery rule must specifically plead facts to show (1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.’ [Citation.] In assessing the sufficiency of the allegations of delayed discovery, the court places the burden on the plaintiff to ‘show diligence’; ‘conclusory allegations will not withstand demurrer.’ [Citation.]’ [Citation.]” (*Id.* at 901.)

Plaintiff signed the quit claim deed in October 2020 and this complaint was not filed until more than three years later. These facts show the possibility that the complaint is barred by the three-year statute of limitations. Thus, in order to avoid application of the statute of limitations, Plaintiff must allege delayed discovery or some other reason why the statute of limitations does not apply.

Here, Plaintiff alleges that he could not read the quitclaim deed and relied on his sister’s and nephew’s explanation of what the document said. Plaintiff has also alleged that he relied on his sister’s explanation of what the document would be used for – obtaining beneficial financing. Plaintiff alleges that he did not actually discover the alleged fraud by Defendant until March 2024 when she tried to evict him. Since Defendant did not attempt to evict Plaintiff until March 2024, Plaintiff has sufficiently alleged facts showing the date of discovery. Further, the fact the Defendant provided false information to Plaintiff in October 2020 provides a reasonable explanation for Plaintiff’s failure to discover the fraud earlier.

The Court agrees with Defendants that there are some inconsistencies in the FAC regarding discovery, it is clear that Plaintiff did not intend to allege he discovered the facts in October 2025 (which is after the original complaint was filed.) Further, it is possible to discover the alleged fraud and submit a complaint on the same day. Finally, Plaintiff’s statement in the complaint to the district attorney’s office is too vague to contradict these allegations.

The Court finds that Plaintiff has alleged sufficient facts to show delayed discovery.

Statute of Frauds

Defendant next argues that the statute of frauds prevents the allegation that the quitclaim deed from an unconditional transfer of property to a property that was transferred for refinancing only. Agreements for the sale of real property or an interest therein generally must be in writing. (Civil Code §§ 1624(a)(3).) There are numerous exceptions to the statute of frauds, however, Plaintiff has not addressed which exception applies here. The demurrer to the fraud claim is sustained with leave to amend for Plaintiff to allege facts showing why the statute of frauds does not apply here.

Declaratory Relief

Defendant argues that the declaratory relief claim fails because it is not an independent controversy and it also fails for the same reasons as the fraud claim.

“[T]he declaratory procedure operates prospectively, and not merely for the redress of past wrongs. It serves to set controversies at rest before they lead to repudiation of obligations, invasion of rights or commission of wrongs; in short, the remedy is to be used in the interests of preventive justice, to declare rights rather than execute them. [Citations.]” (*Travers v. Loudon* (1967) 254 Cal.App.2d 926, 931; see also Code of Civil Procedure section 1060.)

Here, Plaintiff seeks a declaration that he did not understand or comprehend or intend to grant unconditional title to the Defendant. That is a declaration of past wrongs. Further, to the extent the declaratory relief claim seeks return of the title of the property to Plaintiff, that claim is covered under the quiet title claim.

The demurrer to the declaratory relief claim is sustained with leave to amend for Plaintiff to allege an actual present controversy that is not entirely duplicative of the other causes of action alleged in the complaint.

Quiet Title

Defendant argues that the quiet title claim has not been properly alleges. A quiet title claim must be verified and must include allegations of: (1) a legal description of the property; (2) the plaintiff's title and basis for title; (3) the adverse claims; (4) the date as of which the determination is sought; and (5) a prayer for determination of title. (Code Civil Procedure section 761.020 (emphasis added).)

Defendant also argues that Plaintiff is trying to quiet title to himself and his mother, but she is not named in the complaint. Further, the Court notes that Plaintiff's brothers are alleged to be prior owners who were also tricked by Defendant, but they are also not named in the complaint.

The Court finds that Plaintiff has not followed the requirements for section 761.020 in multiple ways. Also, Plaintiff cannot seek to add his mother to title without naming her as a party. In addition, Plaintiff needs to name the other parties with potentially adverse claims.

The demurrer is sustained with leave to amend on these grounds. Plaintiff shall amend his claim to meet the requirements of section 761.020. Further, he shall name all interested parties or alleged why a party is no longer interested.

Defendant argues that the statute of limitations bars this claim. “The law is clear that the theory of relief underlying an action for quiet title, in this case fraud or mistake, determines which statute of limitations applies. [Citations.]” (*Ankoanda, supra*, 44 Cal.App.4th at 615.) As explained above, Plaintiff has sufficiently alleged delayed discovery based upon the fraud theory.